

SENATE FLOOR VERSION

April 22, 2026

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 4326

By: Moore, Archer, and Deck of
the House

and

Seifried and Bullard of the
Senate

[Oklahoma Higher Learning Access Program -
eligibility requirements - student agreements -
application - financial qualification determination -
promulgation of rules - effective date -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as
last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
2025, Section 2603), is amended to read as follows:

Section 2603. A. Except as otherwise provided for in
subsection B of this section and elsewhere in this section, to be
eligible to participate in the Oklahoma Higher Learning Access
Program and to qualify for an award which includes payment of an
amount equivalent to resident tuition or other tuition pursuant to

1 Section 2604 of this title for the first semester or other academic
2 unit of postsecondary enrollment, a student shall:

3 1. Be a resident of this state or be enrolled in a school
4 district located in this state that serves students who reside in
5 both this state and an adjacent state pursuant to a contract as
6 authorized in Section 5-117.1 of this title;

7 2. Be a United States citizen or lawfully present in the United
8 States. A student who is not a United States citizen or lawfully
9 present in the United States shall not be eligible to participate in
10 the Oklahoma Higher Learning Access Program and to qualify for an
11 award notwithstanding the provisions of Section 3242 of this title.
12 The provisions of this paragraph shall not apply to any student who
13 was enrolled in the Oklahoma Higher Learning Access Program prior to
14 the end of the 2006-2007 school year;

15 3. Have a record of satisfactory compliance with agreements
16 executed pursuant to Section 2605 of this title;

17 4. a. Have graduated within the previous three (3) years
18 from a high school accredited by the State Board of
19 Education or the Oklahoma School of Science and
20 Mathematics with a minimum 2.5 cumulative grade point
21 average on a 4.0 scale for all work attempted in
22 grades nine through twelve,

23 b. Have graduated within the previous three (3) years
24 from a high school not accredited by the State Board

of Education with a minimum 2.5 cumulative grade point average on a 4.0 scale for all work attempted in grades nine through twelve and have achieved a composite score of 22 or higher on the ACT test, or

c. Have satisfactorily completed within the previous three (3) years an educational program that was provided through a means other than a public or private school and have achieved a composite score of 22 or higher on the ACT test;

5. Have completed the curricular requirements for admission to an institution within The Oklahoma State System of Higher Education or have completed the core curriculum and be seeking admission to a technology center school governed by the State Board of Career and Technology Education. Students shall also have attained a 2.5 grade point average in the ~~core~~ Oklahoma's Promise required curriculum courses. Students who attended a high school which did not offer all the ~~core~~ Oklahoma's Promise required curriculum courses or students who were educated by other means and were not offered all the ~~core~~ Oklahoma's Promise required curriculum courses shall be allowed to satisfy this curriculum requirement by participating in a program approved by the Oklahoma State Regents for Higher Education for remediation of high school curricular deficiencies;

6. Have satisfied admission standards as determined by the Oklahoma State Regents for Higher Education for first-time-entering

1 students for the appropriate type of institution, or, if attending a
2 private institution, have satisfied admission standards as
3 determined by the private institution. No student participating in
4 the Oklahoma Higher Learning Access Program shall be admitted into
5 an institution of higher education by special admission standards;

6 7. Have secured admission to, and enrolled in, an institution
7 which is a member of The Oklahoma State System of Higher Education,
8 a postsecondary vocational-technical program offered by a technology
9 center school that meets the requirements to be eligible for federal
10 student financial aid, or a private institution of higher learning
11 located within this state and accredited pursuant to Section 4103 of
12 this title; and

13 8. a. Have established financial need according to the
14 provisions of subsection D of Section 2605 of this
15 title and standards and provisions promulgated by the
16 Oklahoma State Regents for Higher Education,

17 b. If the student was adopted between birth and twelve
18 (12) years of age while in the permanent custody of
19 the Oklahoma Department of Human Services, in the
20 court-ordered custody of a ~~licensed~~ private nonprofit
21 child-placing agency licensed by the Oklahoma
22 Department of Human Services, or federally recognized
23 Indian tribe, as defined by the federal Indian Child
24 Welfare Act of 1978, have established financial need

1 according to the provisions of paragraph 1 of
2 subsection E of Section 2605 of this title and
3 standards and provisions promulgated by the Oklahoma
4 State Regents for Higher Education,

5 c. If the student was adopted ~~between~~ after reaching
6 thirteen (13) years of age and ~~seventeen (17)~~ prior to
7 reaching eighteen (18) years of age while in the
8 permanent custody of the Oklahoma Department of Human
9 Services, in the court-ordered custody of a ~~licensed~~
10 private nonprofit child-placing agency licensed by the
11 Oklahoma Department of Human Services, or federally
12 recognized Indian tribe, as defined by the federal
13 Indian Child Welfare Act of 1978, have established
14 financial need according to the provisions of
15 paragraph 2 of subsection E of Section 2605 of this
16 title and standards and provisions promulgated by the
17 Oklahoma State Regents for Higher Education,

18 d. ~~If the student was placed~~ Was in the custody of the
19 Oklahoma Department of Human Services, in the court-
20 ordered custody of a private nonprofit child-placing
21 agency licensed by the Oklahoma Department of Human
22 Services, or federally recognized Indian tribe, as
23 defined by the federal Indian Child Welfare Act of
24 1978, at any time during the eighth, ninth, tenth, or

1 eleventh grade and enrolls in the program no later
2 than his or her official date of high school
3 graduation, ~~have established financial need according~~
4 ~~to the provisions of paragraph 3 of subsection E of~~
5 ~~Section 2605 of this title~~ and any additional
6 requirements according to the standards and provisions
7 promulgated by the Oklahoma State Regents for Higher
8 Education, or

9 e. If the student is the child of a certified ~~classroom~~
10 teacher and meets the provisions of paragraph ~~5~~ 4 of
11 subsection E of Section 2605 of this title. For the
12 purposes of this paragraph, ~~"certified classroom~~
13 ~~teacher"~~ "certified teacher" shall have the same
14 meaning as provided in subparagraph d of paragraph ~~5~~ 4
15 of subsection E of Section 2605 of this title. A
16 certified teacher shall be considered the parent of a
17 student if the certified teacher is the natural or
18 adoptive parent or the permanent legal guardian of the
19 student.

20 B. 1. A student shall be eligible to participate in the
21 Oklahoma Higher Learning Access Program and to qualify for an award
22 which includes payment of an amount equivalent to resident tuition
23 or other tuition pursuant to Section 2604 of this title for the
24

1 first semester or other academic unit of postsecondary enrollment if
2 the student meets all of the following criteria:

3 a. is a child of any person killed after January 1, 2000,
4 in the line of duty in any branch of the United States
5 Armed Forces or who died after January 1, 2000, as a
6 result of an injury sustained while in the line of
7 duty in any branch of the United States Armed Forces
8 and the person who was killed or died filed an
9 individual or joint Oklahoma income tax return for the
10 tax year prior to the year during which the person was
11 killed or died,

12 b. is a resident of this state or is enrolled in a school
13 district located in this state that serves students
14 who reside in both this state and an adjacent state
15 pursuant to a contract as authorized in Section 5-
16 117.1 of this title,

17 c. enrolls in an institution within The Oklahoma State
18 System of Higher Education prior to reaching the age
19 of twenty-one (21),

20 d. has satisfied admission standards as determined by the
21 Oklahoma State Regents for Higher Education for first-
22 time-entering students for the appropriate type of
23 institution, or, if attending a private institution,
24 has satisfied admission standards as determined by the

1 private institution. No student participating in the
2 Oklahoma Higher Learning Access Program shall be
3 admitted into an institution of higher education by
4 special admission standards,

5 e. has secured admission to, and enrolled in, an
6 institution which is a member of The Oklahoma State
7 System of Higher Education, a postsecondary
8 vocational-technical program offered by a technology
9 center school that meets the requirements to be
10 eligible for federal student financial aid, or a
11 private institution of higher learning located within
12 this state and accredited pursuant to Section 4103 of
13 this title, and

14 f. executes an agreement pursuant to subsection C of
15 Section 2605 of this title.

16 2. A student who is eligible to participate in the program
17 pursuant to this subsection shall not be required to meet the
18 eligibility requirements set forth in subsection A of this section.

19 C. To retain eligibility while pursuing the program of higher
20 learning in which enrolled, the student shall:

21 1. Meet the requirements for retention and degree completion as
22 established by the institution in which the student is enrolled;

1 2. Maintain good academic standing and satisfactory academic
2 progress according to standards of the Oklahoma State Regents for
3 Higher Education;

4 3. Maintain satisfactory academic progress as required for
5 eligibility for federal Title IV student financial aid programs.
6 The provisions of this paragraph shall become effective for the
7 2012-2013 school year;

8 4. Comply with the standards related to maintenance of
9 eligibility as promulgated by the Oklahoma State Regents for Higher
10 Education; and

11 5. Refrain from conduct that leads to expulsion or suspension
12 of more than one semester from an institution of higher education.
13 A student who violates the provisions of this paragraph shall
14 permanently lose eligibility for program benefits. The provisions
15 of this paragraph shall become effective January 1, 2008.

16 D. The Oklahoma State Regents for Higher Education and the
17 State Board of Career and Technology Education shall promulgate
18 rules relating to maintenance of eligibility under the Oklahoma
19 Higher Learning Access Act by a student.

20 E. It is the intent of the Legislature that students in the
21 ninth grade for the 1992-93 school year who are determined to be
22 eligible Oklahoma Higher Learning Access students pursuant to the
23 Oklahoma Higher Learning Access Act shall be the first students
24

1 eligible for benefits from the Oklahoma Higher Learning Access Trust
2 Fund.

3 F. The Oklahoma State Regents for Higher Education are
4 authorized to study, develop, and propose criteria for determining
5 award eligibility based upon the completion of seven semesters of
6 high school coursework by a student.

7 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as
8 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
9 2025, Section 2605), is amended to read as follows:

10 Section 2605. A. Each school year, every fifth- through
11 eleventh-grade student in the public and private schools of this
12 state and students who are educated by other means and are in the
13 equivalent of the fifth through eleventh grade shall be apprised,
14 together with the parent, custodial parent, or guardian of the
15 student, of the opportunity for access to higher learning under the
16 Oklahoma Higher Learning Access Program. The Oklahoma State Regents
17 for Higher Education and the State Board of Education shall develop,
18 promote, and coordinate a public awareness program to be utilized in
19 making students and parents aware of the Oklahoma Higher Learning
20 Access Program.

21 B. On a form provided by the Oklahoma State Regents for Higher
22 Education, every public school district shall designate at least one
23 Oklahoma Higher Learning Access Program contact person, who shall be
24 a counselor or teacher, at each public school site in this state in

1 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
2 When requested by the State Regents, the State Board of Education
3 shall assist the State Regents to ensure the designation of contact
4 persons. Private schools shall also designate at least one school
5 official as a contact person. For students who are educated by
6 other means, a parent or guardian or other person approved by the
7 State Regents shall be designated the contact person.

8 C. 1. Students who qualify on the basis of financial need
9 according to subsection D or E of this section or who meet the
10 eligibility qualification set forth in subparagraph d of paragraph 8
11 of subsection A of Section 2603 of this title or in subparagraph a
12 of paragraph 1 of subsection B of Section 2603 of this title no
13 later than December 31 of their twelfth-grade year or prior to
14 reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on
15 the basis of the standards and provisions promulgated by the
16 Oklahoma State Regents for Higher Education shall be given the
17 opportunity ~~throughout the eighth-, ninth-, tenth-, and eleventh-~~
18 ~~grade years and no later than December 31 of the twelfth-grade year,~~
19 ~~for students enrolled in a public or private school, or between the~~
20 ~~ages of thirteen (13) and seventeen (17), for students who are~~
21 ~~educated by other means, to enter into participation in the program~~
22 ~~by agreeing to, throughout the remainder of their school years or~~
23 educational to enter into participation in the program:
24

1 a. for students enrolled in a public or private school,
2 throughout the eighth-, ninth-, tenth-, and eleventh-
3 grade years and prior to:

4 (1) December 31 of the twelfth-grade year, or

5 (2) the official date of high school graduation,
6 whichever occurs first, and

7 b. for students educated by other means after reaching
8 thirteen (13) years of age and prior to:

9 (1) reaching eighteen (18) years of age, or

10 (2) the date of completion of their educational
11 program, whichever occurs first.

12 2. Students who qualify on the basis of financial need
13 according to subsection D or E of this section or who meet the
14 eligibility qualification set forth in subparagraph d of paragraph 8
15 of subsection A of Section 2603 of this title or in subparagraph a
16 of paragraph 1 of subsection B of Section 2603 of this title shall
17 enter into participation in the program by agreeing throughout the
18 remainder of their school years or educational program to:

19 a. attend school or an educational program regularly and
20 do homework regularly,

21 b. refrain from substance abuse,

22 c. refrain from commission of crimes or delinquent acts,

23 d. have school work and school records reviewed by
24 mentors designated pursuant to the program,

1 e. provide information requested by the Oklahoma State
2 Regents for Higher Education or the State Board of
3 Education, and

4 f. participate in program activities.

5 ~~2.~~ 3. Students who meet the eligibility qualification set forth
6 in subparagraph a of paragraph 1 of subsection B of Section 2603 of
7 this title after December 31 of their twelfth-grade year or after
8 reaching the age of eighteen (18) shall be given the opportunity
9 prior to reaching the age of twenty-one (21) to enter into
10 participation in the program and shall execute an agreement with
11 provisions as determined by the Oklahoma State Regents for Higher
12 Education.

13 ~~3.~~ 4. The contact person shall maintain the agreements, which
14 shall be executed on forms provided by the Oklahoma State Regents
15 for Higher Education and managed according to regulations
16 promulgated by the Oklahoma State Regents for Higher Education, and
17 the contact person shall monitor compliance of the student with the
18 terms of the agreement. The Oklahoma State Regents for Higher
19 Education are authorized to process student agreements and verify
20 compliance with the agreements. Students failing to comply with the
21 terms of the agreement shall not be eligible for the awards provided
22 in Section 2604 of this title.

1 ~~4.~~ 5. The Oklahoma State Regents for Higher Education may
2 provide an exception to the age limits provided for in paragraphs 1
3 and ~~2~~ 3 of this subsection pursuant to subsection L of this section.

4 ~~5.~~ 6. Notwithstanding the provisions of Sections 5-132 and 5-
5 132.1 of this title, a student who is age twenty-one (21) or older
6 shall not be eligible to enter into participation in the program.

7 D. Except as otherwise provided for in subsection E of this
8 section and except for students who qualify pursuant to subsection B
9 of Section 2603 of this title, a student shall not be found to be in
10 financial need for purposes of the Oklahoma Higher Learning Access
11 Program if:

12 1. Beginning with eighth-, ninth-, or tenth-grade students who
13 are enrolled in a public or private school or students between the
14 ages of thirteen (13) and fifteen (15) who are educated by other
15 means who apply for participation in the program in the 2017-2018
16 school year, the federal adjusted gross income of the student's
17 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

18 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
19 students who are enrolled in a public or private school or students
20 between the ages of thirteen (13) and sixteen (16) who are educated
21 by other means who apply for participation in the program in the
22 2021-2022 school year, the federal adjusted gross income of the
23 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per
24 year;

1 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
2 students who are enrolled in a public or private school or students
3 between the ages of thirteen (13) and sixteen (16) who are educated
4 by other means who apply for participation in the program in the
5 2022-2023 school year:

6 a. the federal adjusted gross income of the student's
7 parent(s), who have two or fewer dependent children,
8 exceeds Sixty Thousand Dollars (\$60,000.00) per year,

9 b. the federal adjusted gross income of the student's
10 parent(s), who have three or four dependent children,
11 exceeds Seventy Thousand Dollars (\$70,000.00) per
12 year, or

13 c. the federal adjusted gross income of the student's
14 parent(s), who have five or more dependent children,
15 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

16 4. Beginning with ~~eighth-, ninth-, tenth-, or eleventh-grade~~
17 ~~students or twelfth-grade students no later than December 31 of~~
18 ~~their twelfth-grade year who are enrolled in a public or private~~
19 ~~school or students between the ages of thirteen (13) and seventeen~~
20 ~~(17) who are educated by other means~~ who apply for participation in
21 the program in the 2025-2026 school year:

22 a. the federal adjusted gross income of the student's
23 parent(s), who have two or fewer dependent children,
24 exceeds Sixty Thousand Dollars (\$60,000.00) per year,

- b. the federal adjusted gross income of the student's parent(s), who have three or four dependent children, exceeds Seventy Thousand Dollars (\$70,000.00) per year, or
- c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

5. Beginning with the 2018-2019 academic year, prior to receiving any Oklahoma Higher Learning Access Program benefit award for any year during which the student is enrolled in an institution which is a member of The Oklahoma State System of Higher Education, a postsecondary vocational-technical program offered by a technology center school that meets the requirements to be eligible for federal student financial aid, or a private institution of higher learning located within this state and accredited pursuant to Section 4103 of this title, the federal adjusted gross income of the student's parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per year.

The determination of financial qualification as set forth in this paragraph shall be based on the income of the student, not the income of the parent(s), if a student:

- a. is determined to be independent of the student's parents for federal financial aid purposes at the time of application,

1 b. was in the permanent custody of the Oklahoma
2 Department of Human Services at the time the student
3 enrolled in the program, or

4 c. was in the court-ordered custody of a federally
5 recognized Indian tribe, as defined by the federal
6 Indian Child Welfare Act of 1978, at the time the
7 student enrolled in the program.

8 The provisions of this paragraph shall apply to any student who
9 has received an Oklahoma Higher Learning Access Program benefit
10 award after the 2017-2018 school year; and

11 6. The Oklahoma State Regents for Higher Education shall review
12 the determination of financial qualification as set forth in
13 paragraphs 1, 2, 3, and 4 of this subsection if the income from
14 taxable and nontaxable sources of the student's parent(s) includes
15 income received from nontaxable military benefits or income received
16 from the federal Social Security Administration due to the death or
17 disability of the student's parent(s). If the income from taxable
18 and nontaxable sources of the student's parent(s), excluding income
19 received from nontaxable military benefits or income received from
20 the federal Social Security Administration due to the death or
21 disability of the student's parent(s), does not exceed the
22 limitations set forth by paragraphs 1, 2, 3, and 4 of this
23 subsection, the student shall be determined to have met the
24

1 financial qualification set forth in paragraphs 1, 2, 3, and 4 of
2 this subsection.

3 E. 1. A student who was adopted between birth and twelve (12)
4 years of age while in the permanent custody of the Oklahoma
5 Department of Human Services, in the court-ordered custody of a
6 ~~licensed~~ private nonprofit child-placing agency licensed by the
7 Oklahoma Department of Human Services, or federally recognized
8 Indian tribe, as defined by the federal Indian Child Welfare Act of
9 1978, shall not be found to be in financial need for purposes of the
10 Oklahoma Higher Learning Access Program if at the time the student
11 begins postsecondary education and prior to receiving any Oklahoma
12 Higher Learning Access Program benefit award, the federal adjusted
13 gross income of the student's parent(s) exceeds One Hundred Fifty
14 Thousand Dollars (\$150,000.00) per year. The provisions of this
15 paragraph shall not apply to any student who has received an
16 Oklahoma Higher Learning Access Program benefit award prior to the
17 2012-2013 school year.

18 2. A student who was adopted ~~between~~ after reaching thirteen
19 (13) years of age and ~~seventeen (17)~~ prior to reaching eighteen (18)
20 years of age while in the permanent custody of the Oklahoma
21 Department of Human Services, in the court-ordered custody of a
22 ~~licensed~~ private nonprofit child-placing agency licensed by the
23 Oklahoma Department of Human Services, or federally recognized
24 Indian tribe, as defined by the federal Indian Child Welfare Act of

1 1978, shall not be found to be in financial need for purposes of the
2 Oklahoma Higher Learning Access Program if at the time the student
3 begins postsecondary education and prior to receiving any Oklahoma
4 Higher Learning Access Program benefit award, the federal adjusted
5 gross income of the student's parent(s) exceeds Two Hundred Thousand
6 Dollars (\$200,000.00) per year. The provisions of this paragraph
7 shall not apply to any student who has received an Oklahoma Higher
8 Learning Access Program benefit award prior to the 2012-2013 school
9 year.

10 3. ~~A student who was placed in the custody of the Department of~~
11 ~~Human Services at any time during the eighth, ninth, tenth, or~~
12 ~~eleventh grade and enrolls in the program no later than his or her~~
13 ~~official date of high school graduation shall not be found to be in~~
14 ~~financial need for purposes of the Oklahoma Higher Learning Access~~
15 ~~Program if the federal adjusted gross income of the student exceeds~~
16 ~~Sixty Thousand Dollars (\$60,000.00) per year.~~

17 4. Except for students who qualify pursuant to subparagraph d
18 of paragraph 8 of subsection A and subsection B of Section 2603 of
19 this title, the determination of financial qualification as set
20 forth in this subsection shall be based on the income of the
21 student, not the income of the parent(s), if the student is
22 determined to be independent of the student's parent(s) for federal
23 financial aid purposes at the time of application. A determination
24 of financial qualification shall not be required for the student who

1 meets the criteria set forth in this subsection at the time the
2 student applies for participation in the program. The provisions of
3 this paragraph shall not apply to any student who has received an
4 Oklahoma Higher Learning Access Program benefit award prior to the
5 2008-2009 school year.

6 ~~5.~~

7 4. a. A student who is the child of a certified ~~classroom~~
8 teacher at the time the student applies for
9 participation in the Oklahoma Higher Learning Access
10 Program shall not be found to be in financial need for
11 the purposes of the Oklahoma Higher Learning Access
12 Program if, beginning with eighth-, ninth-, tenth-, or
13 eleventh-grade students or twelfth-grade students no
14 later than December 31 of their twelfth-grade year who
15 are enrolled in a public or private school or students
16 ~~between~~ after reaching thirteen (13) years of age and
17 ~~seventeen (17) prior to reaching eighteen (18) years~~
18 of age who are educated by other means who apply for
19 participation in the program in the 2025-2026 school
20 year, the household income of the student's parent(s)
21 is equal to or greater than seven hundred percent
22 (700%) of the federal poverty level (FPL).

23 b. Prior to receiving any Oklahoma Higher Learning Access
24 Program benefit award for any year during which the

1 student is enrolled in an institution that is a member
2 of The Oklahoma State System of Higher Education, a
3 postsecondary vocational-technical program offered by
4 a technology center school that meets the eligibility
5 requirements for federal student financial aid, or a
6 private institution of higher learning located within
7 this state and accredited pursuant to Section 4103 of
8 this title, the household income of the parent(s) of a
9 student who qualifies pursuant to this paragraph shall
10 not be equal to or greater than seven hundred percent
11 (700%) of the federal poverty level (FPL).

12 c. The Oklahoma State Regents for Higher Education shall
13 verify the full-time employment status of the
14 student's parent(s) and the current standard or
15 alternative certification in a classroom subject of
16 the parents prior to a student who qualifies pursuant
17 to this paragraph receiving any Oklahoma Higher
18 Learning Access Program benefit award.

19 d. For the purposes of this paragraph, ~~"certified~~
20 ~~classroom teacher"~~ "certified teacher" means a
21 ~~certified,~~ :

22 (1) full-time classroom teacher who has a standard or
23 alternative certificate to teach issued by the
24 State Board of Education, teaches a classroom

1 subject as determined by the State Regents, and
2 who has been employed as a teacher in a public
3 school district classroom in this state for a
4 minimum of ten (10) years prior to his or her
5 child applying for participation in the program.

6 (2) full-time counselor, librarian, school nurse, or
7 athletic trainer who has a standard or
8 alternative certificate to teach issued by the
9 State Board of Education if employed by a public
10 school district or a technology center school
11 district in this state and otherwise fulfills the
12 requirements of this paragraph, and

13 (3) full-time classroom teacher who has a standard or
14 alternative certificate to teach issued by the
15 State Board of Education who is employed to teach
16 kindergarten through twelfth-grade public school
17 students at a technology center school district
18 in this state if the teacher is employed to teach
19 at least one fall and one spring semester class
20 per academic year that provides free public
21 education to at least one kindergarten through
22 twelfth-grade student and if the teacher
23 otherwise fulfills the requirements of this
24 paragraph.

1 e. The certified teacher ~~is~~ shall not be required to have
2 been employed by the same public school district for
3 ten (10) consecutive years and the ten (10) years of
4 employment shall not be required to be consecutive.
5 However, the ten (10) years of employment shall have
6 occurred in the last twenty (20) years.

7 f. Certified ~~classroom~~ teacher does not mean a certified
8 teacher who is employed as a school district
9 superintendent, principal, or any other position
10 within the administration of a public school district
11 when his or her child applies for participation in the
12 program or prior to his or her child receiving any
13 Oklahoma Higher Learning Access Program benefit award.

14 g. Employment as a teacher with an emergency or
15 provisional certificate shall not qualify for the
16 employment requirements of this paragraph.

17 F. The financial qualification of a student as set forth in
18 subsections D and E of this section shall be certified by the
19 contact person or by the Oklahoma State Regents for Higher Education
20 on the agreement form provided by the Oklahoma State Regents for
21 Higher Education. The form shall be retained in the permanent
22 record of the student and a copy forwarded to the Oklahoma State
23 Regents for Higher Education.

1 G. Agreements shall be witnessed by the parent, custodial
2 parent, or guardian of the student, who shall further agree to:

3 1. Assist the student in achieving compliance with the
4 agreements;

5 2. Confer, when requested to do so, with the school contact
6 person, other school personnel, and program mentors;

7 3. Provide information requested by the Oklahoma State Regents
8 for Higher Education or the State Board of Education; and

9 4. Assist the student in completing forms and reports required
10 for program participation, making applications to institutions and
11 schools of higher learning, and filing applications for student
12 grants and scholarships.

13 H. The Oklahoma State Regents for Higher Education shall
14 promulgate rules for Oklahoma's Promise related to applications,
15 parentage and guardianship, income documentation requirements, and
16 the determination of student compliance with agreements made
17 pursuant to this section.

18 I. The Oklahoma State Regents for Higher Education shall
19 designate personnel to coordinate tracking of program records for
20 the years when students participating in the program are still in
21 the schools or are being educated by other means, provide staff
22 development for contact persons in the schools, and provide liaison
23 with the State Board of Education and local organizations and
24 individuals participating in the program.

1 J. The school district where an Oklahoma Higher Learning Access
2 Program student is enrolled when the student begins participation in
3 the program and any subsequent school district where the student
4 enrolls shall forward information regarding participation by the
5 student in the program to a school to which the student transfers
6 upon the request of the school for the records of the student.

7 K. Students participating in the Oklahoma Higher Learning
8 Access Program shall provide their Social Security number or their
9 student identification number used by their school to the Oklahoma
10 State Regents for Higher Education. The State Regents shall keep
11 the numbers confidential and use them only for administrative
12 purposes.

13 L. The State Regents may provide an exception to the age limits
14 provided for in paragraphs 1 and ~~2~~ 3 of subsection C of this section
15 to a student due to hardship circumstances and allow an application
16 to the Oklahoma Higher Learning Access Program for twelfth-grade
17 students enrolled in a public or private school and students who are
18 educated by other means and are in the equivalent of twelfth grade.
19 Provided, however, the exception due to hardship circumstances shall
20 not apply to:

21 1. A student enrolled in a public or private school after the
22 student's official date of high school graduation;

23 2. A student educated by other means who is age nineteen (19)
24 or older; or

1 3. Any student who is age twenty-one (21) or older.

2 The Oklahoma State Regents for Higher Education shall promulgate
3 rules to implement the provisions of this subsection.

4 SECTION 3. This act shall become effective July 1, 2026.

5 SECTION 4. It being immediately necessary for the preservation
6 of the public peace, health, or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

9 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
10 April 22, 2026 - DO PASS AS AMENDED